

Osabea healthcare solutions LTD

Logo (if required)

Statement of Main Terms of Employment

for

(Insert Employee Name)

SMT1 Zero Hour

## Statement of Main Terms of Employment

This Statement dated (insert date of issue) sets out the particulars of main terms of employment under which **Osabea healthcare solutions LTD** (the employer referred to as 'the Company') whose address is **1 St Faith's Street, Maidstone Kent** employs (insert name of employee) (referred to as 'employee', 'you', 'your' etc.).

Any changes or amendments to these terms will be confirmed in writing within one month of them occurring.

### Agreements in Force

There are no collective agreements affecting your terms and conditions of employment.

### Job Title

You are employed as (insert job title).

The Company reserves the right to require you to perform other duties from time to time, which may include work in other departments, and it is a condition of your employment that you are prepared to do this.

### Commencement Date

Your employment with the Company under this contract (insert 'will commence' or 'commenced') on (insert date this contract starts).

Your period of continuous employment began on (insert continuous service date of employment).

### Probationary Period

The first 6 months of your employment are served as a probationary period. During this period your work performance and general suitability will be assessed. Receipt of written confirmation will signify that your probationary period has been successfully passed. However, if your work performance is not up to the required standard, or you are considered to be generally unsuitable, we may either extend your probationary period or terminate your employment at any time.

We reserve the right not to apply our full capability and disciplinary procedures during your probationary period.

### Criminal Records Checks

Your employment with the Company is conditional upon receipt of a satisfactory enhanced DBS certificate.

It will be essential for you to co-operate fully with the application process to obtain future DBS checks, as and when required.

Your ongoing employment in your current role will be subject to the content of the DBS check or basic disclosure certificate, or self-disclosure, being satisfactory to the Company.

The Company will not meet the cost of obtaining this check.

### Notification of Criminal Matters

You are required to notify your Manager immediately if you are questioned or arrested by the police or charged, cautioned, or convicted in connection with any criminal matter.

You are also required to notify your Manager immediately if you are suspended from work by any other employer or have any allegations made against you inside or outside of work that could relate to or impact on the safeguarding of children and vulnerable adults.

#### Permission to Work in the UK

Where you have a time limit on your right to work in the UK and you provided documents to the company for your initial pre employment check from List B, the Company will undertake a follow up check. This will either be a manual right to work check or the online right to work check where applicable.

If you have a current or pending application or appeal you must:

- keep the Company up to date with any current or pending immigration application or appeal;
- provide the Company with copies of correspondence from the Home Office relating to applications or appeals such as acknowledgement letters or invitations for a Positive Verification Notice;
- provide the Company with a copy of your Application Registration Card or other such document provided;
- inform the Company on a regular basis if your application or appeal is not completed.

The Company may also contact the Employer Checking Service regarding your immigration status.

During this process, you may be placed on a period of suspension, during which you are not permitted to work for the Company, pending production of evidence of your permission to remain in the UK. This period of suspension will be unpaid.

#### Place of Work

Your normal place of work is at the address above. However, you are required to travel to and work at various locations and sites as determined by the needs of the business.

#### Working Abroad

The Company does not anticipate a requirement for you to work outside the United Kingdom.

#### Pay

Your wage will be paid at the rate of £(insert amount) per hour by Bank Transfer at monthly intervals in arrears on the last working day of the month.

The Company operates a salary sacrifice scheme. Further details are available separately.

The Company has the right to deduct from your pay, or otherwise to require repayment by other means, any sum which you owe to the Company including, without limitation, any overpayment of pay or expenses, loans made to you by the Company, or any other item identified in this Statement and/or the Employee Handbook as being repayable by you to the Company.

If you arrive late for work, an amount equivalent to the number of minutes' lateness will be deducted from your pay.

If you are prevented from attending your place of work and/or performing your job duties as a result of Police bail conditions, or because of an order or direction given by a court or relevant regulatory body, the duration of any such period will be without pay.

The Company will ensure its compliance with the law on the National Minimum Wage and the National Living Wage at all times.

#### Hours of Work

Given the nature of the business, your hours of work will vary according to the specific needs of the business. It will not always be possible to provide you with work and you will be notified of any hours required.

The Company will endeavour to allocate suitable work to you when such work is available. You will be given as much notice as is reasonably practicable; however you may be required to cover for other employees at short notice.

The days on which you are required to work are Monday to Sunday. When work is offered on a given day, it will be anytime on the 24 hour clock. You will not be required to work for more than 15 hours per day, or 50 hours per week, or on more than 6 days per week.

If you will be required to sleep in at the clients premises, you will be paid £40 per night.

You will be given a 20 minute rest break where your working hours in that day are more than six. The exact time of your rest break will be dependent on the needs of the service and due to the complex nature of your job you are not permitted to leave the premises.

You will be expected to fulfil any hours of work requested by the Company to fulfil the requirements of the role to the satisfaction of the Company, subject to the provisions of the Working Time Regulations 1998 (as amended).

#### Holiday Entitlement

You are entitled to 5.6 weeks of paid annual holiday per holiday year. In your first holiday year your entitlement will be proportionate to the amount of time left in the holiday year

Given the nature of the business, it will sometimes be necessary for you to work on bank and public holidays, and you will receive payment at your normal rate for those hours worked.

Payment for holidays will be calculated on the basis of your average rate per hour over the 52 paid weeks immediately prior to the holiday. (For this purpose, a "paid week" is a week in relation to which some remuneration was paid to you by the Company).

It is our policy to encourage you to take all of your holiday entitlement in the current holiday year. We do not permit holidays to be carried forward and no payment in lieu will be made in respect of untaken holidays other than in the event of termination of your employment.

Commented [EH1]: Added

Upon termination of your employment, payment will normally be made for all unused accrued holiday entitlement. If you have taken more annual holiday entitlement than you have accrued during the holiday year, the balance will be deducted from any outstanding pay. Payment for holidays in these circumstances will be made on a pro-rata basis to your normal working days and your service in the current holiday year.

Where termination of your employment is due to gross misconduct or where the full contractual notice period is not served and worked, any accrued but unused holiday entitlement over and above the statutory minimum holiday entitlement will not be paid.

#### Other Paid Leave Entitlement

You may take the following types of paid leave subject to any qualifying criteria and notification requirements which may apply:

- i. Maternity, paternity, adoption and shared parental leave with pay in line with statutory entitlements in place from time to time.
- ii. Parental bereavement leave with pay in line with statutory entitlements in place from time to time.
- iii. Eligible employees are entitled to neonatal care leave and pay in line with statutory entitlements in place from time to time.

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#### Company Benefits

There are no Company benefits which apply to your employment.

#### Training Entitlement

At the commencement of your employment you will receive training for your specific job, and as your employment progresses your skills may be extended to encompass new job activities within the business. It is a condition of your employment that you participate in any training deemed necessary by us for you to reach the required levels of attainment standards.

You will be expected to attend mandatory training sessions, CPD education events relevant to your role and professional qualification and other training may be provided at either the employer's premises or at designated locations which shall be notified to you. Accordingly, you may be required to travel to attend these sessions at your own expense. There is no fee payable for this training.

#### Sickness Absence

We appreciate that, from time to time, you may be unable to attend work due to sickness. Payment for periods of absence from work due to any sickness you may have is detailed below. The conditions relating to and the procedure you must follow in the event of periods of absence from work due to sickness are set out in the Employee Handbook.

#### Sick Pay

Payments for periods of absence due to sickness will be made in accordance with the current Statutory Sick Pay (SSP) scheme where applicable.

#### Pension

The Company operates a pension scheme that meets the requirements of automatic enrolment and into which you will be enrolled subject to meeting the requirements of the scheme.

Further details (including the right to opt-out) are available from your Line Manager. If you do opt-out we may periodically enrol you into the scheme as required by legislation, but we will contact you with the details at that time.

### Notice

Up to 1 month's service you are required to give the Company 1 week's notice and 2 week's notice thereafter to terminate your employment.

You are entitled to receive the following periods of notice from the Company to terminate your employment:

- Over 1 month but under 2 years' continuous service - 1 week
- Over 2 years' continuous service - 1 week for each complete year of service to a maximum of 12 weeks after 12 years

By mutual agreement, these notice periods may be waived.

The Company has the right to terminate your employment without notice or payment in lieu of notice in the case of gross misconduct.

### Disciplinary Rules and Procedure

The Company's rules and the disciplinary procedure are shown in the Employee Handbook. It is your responsibility to familiarise yourself with these.

### Appeal Procedure

If you are dissatisfied with any disciplinary decision taken against you, you have the right to appeal which should be sent to the Director. Further details of the appeal procedure are set out in the Employee Handbook.

### Reinstatement and Re-engagement

If you have been dismissed by the Company and you appeal successfully against the Company's decision to dismiss you, the period between the date of the dismissal and the date of your reinstatement or re-engagement will be treated as a period of suspension without pay, except for any period of notice which may have been paid following the dismissal. If you are reinstated to your original job within the Company or re-engaged to a different job within the Company, your continuity of employment with the Company will be preserved.

### Grievance Procedure

If you wish to raise any grievance relating to your employment, you should do so with your Line Manager. Further details of the grievance procedure are set out in the Employee Handbook.

### Exclusion of Third Party Rights

This Statement does not create any right enforceable by any person not a party to it.

### Data Protection

The Company has developed guidelines, which are set out in the Employee Handbook, for the processing of personal data to meet the requirements of current legislation. The Company may change these guidelines at any time at its discretion. The Company will keep personal information on you and disclose such information when required in accordance with the Employee Handbook. The Company's Privacy Notice for Employees contains more information on the types of personal data we keep on you, why we keep it and the lawful basis that applies to our processing activities.

#### Declaration

I acknowledge receipt of this Statement and confirm that I have read the Statement and the Employee Handbook, which set out the principal rules, policies and procedures relating to my employment.

For the purpose of the application of statutory holiday entitlement under the Working Time Regulations (as amended), I agree that the holiday section of this Statement will be held to be a "relevant agreement".

I understand that the Employee Handbook is kept in the office.

Signed by the Employee: .....

Name (Print): .....

Date: .....

Signed on behalf of the Company: .....

Name (Print): .....

Date: .....